

Ong Cheng Cheng v Attorney-General

[2026] SGHC 130; Originating Application No 248 of 2026

General Division of the High Court of the Republic of Singapore

Jurisdiction

Singapore

Area of law

Administrative Law (Judicial review, extension of time, remedies); Civil Procedure

Legal question

Whether the applicant is entitled to an extension of time to seek judicial review of the Attorney-General's decision to intervene in and discontinue a private prosecution. If so, whether there is a prima facie case that the Public Prosecutor's decision to discontinue the prosecution breached Article 12(1) of the Constitution or constituted an arbitrary exercise of prosecutorial power.

Key facts

The applicant (OCC) was assaulted by her brother (OCP) on 21 January 2023 at their family home. OCP pushed OCC, causing her to fall and hit her back against steps, then attacked her face while she was on the floor. OCC suffered injuries including bleeding from the left ear, bruising to the bridge of her nose, and pain in various regions but no fractures. OCP apologised via WhatsApp the same evening. OCC lodged a police report on 30 January 2023 and a Magistrate's Complaint on 5 July 2023. On 12 April 2024, she commenced a private prosecution against OCP for Voluntarily Causing Hurt. On 29 July 2024, the Attorney-General intervened and discontinued the prosecution, granting OCP a discharge amounting to acquittal. OCC subsequently sought clarification from various authorities including her Member of Parliament, the Ministry of Law, and the Prime Minister's Office between July 2024 and June 2025. On 4 March 2026, approximately 19 months after the discontinuance decision, OCC filed the present application for judicial review.

Holding

The court dismissed OCC's application for an extension of time to file the judicial review application. The court held that while ROC 2021 does not contain an express provision for extending time in judicial review matters (unlike the previous ROC 2014), the court retains a discretion under O 3 r 2(1) to extend time in the interests of justice. The applicable test is whether the applicant has satisfactorily accounted for the delay, which is fact-sensitive with no set formula. While OCC's attempts to seek clarification from various parties between July 2024 and June 2025 were reasonable non-legal avenues for dispute resolution, the subsequent nine-month delay (from June 2025 to March 2026) and four-month delay (from November 2025 to March 2026) were not adequately explained. OCC's personal constraints as sole deputy of her mother, her mother's hospitalisations, and home renovations did not satisfactorily explain the delay. Mere ignorance of the three-month limitation period is insufficient. Even if extension had been granted, the application would have been dismissed on the merits. OCC failed to demonstrate an Article 12(1) constitutional breach as she provided no evidence of differential treatment compared to similarly situated persons undertaking private prosecutions. Similarly, she failed to demonstrate arbitrary exercise of

prosecutorial power; the presence of CCTV evidence and OCP's willingness to plead guilty do not, without more, establish arbitrariness given that the Public Prosecutor is entitled to consider multiple factors including public interest, personal circumstances, and moral blameworthiness.

Significance

This decision clarifies the test for extending time in judicial review applications under the new Rules of Court 2021, establishing that satisfactory accounting for delay is a fact-sensitive inquiry requiring genuine attempts at non-litigious resolution. It reinforces the wide prosecutorial discretion available to the Public Prosecutor under Article 35(8) of the Constitution and section 13 of the Criminal Procedure Code, confirming that not all offences need be prosecuted regardless of circumstances. The judgment establishes that private citizens seeking to challenge prosecutorial decisions through judicial review must act promptly after exhausting reasonable non-legal remedies. It also clarifies that private prosecutions are distinguishable from public prosecutions for purposes of comparing prosecutorial decisions, and that the Public Prosecutor is not obliged to disclose reasons or supporting correspondence for prosecutorial decisions.

Precedent impact

The decision clarifies Singapore judicial review jurisprudence by distinguishing the Teng Fuh Holdings factors from the proper test established in *Per Ah Seng Robin v HDB*, which requires a fact-sensitive assessment of whether delay has been satisfactorily accounted for. It reiterates and applies the Syed Suhail two-step test for Article 12(1) constitutional equality challenges and confirms its application to prosecutorial decisions as per *Xu Yuan Chen* and *Kottakki* decisions. The judgment reinforces precedent from *Ramalingam* establishing that prosecutorial discretion is subject to judicial review only for bad faith/extraneous purpose or constitutional violations, not for disagreement with exercise of legitimate discretion. It strengthens the principle that lay persons' ignorance of limitation periods cannot justify extended delays in commencing judicial review.

Full judgment URL

https://www.elitigation.sg/gd/s/2026_SGHC_130